Major Supreme Court Cases

Foundations of Government and Power

- **Marbury v. Madison (1803)**
  Established **judicial review**. The Supreme Court can declare laws unconstitutional.
- **McCulloch v. Maryland (1819)**
  Said the national bank was constitutional and that federal law is supreme over state law.
- **Gibbons v. Ogden (1824)**
  Said the federal government controls **interstate commerce**.
- **United States v. Nixon (1974)**
  Said executive privilege is not absolute. The president must obey the law.
- **Bush v. Gore (2000)**
  Stopped the Florida vote recount in the 2000 presidential election.

Civil Rights and Equal Protection

- **Dred Scott v. Sandford (1857)**
  Said enslaved people were not citizens and could not sue in federal court. Also said Congress could not ban slavery in the territories. This decision increased sectional conflict before the Civil War.
- **Plessy v. Ferguson (1896)**
  Upheld segregation under "separate but equal."
- **Brown v. Board of Education (1954)**
  Overturned Plessy in public education. Said separate schools are inherently unequal.
- **Korematsu v. United States (1944)**
  Upheld Japanese internment during World War II.

Rights of the Accused

- **Mapp v. Ohio (1961)**
  Evidence from an illegal search cannot be used in court.
- **Gideon v. Wainwright (1963)**
  Defendants in criminal cases have the right to a lawyer, even if they cannot afford one.
- **Miranda v. Arizona (1966)**
  Police must inform suspects of their rights before questioning.

First Amendment and Religion

- **Schenck v. United States (1919)**
  Government can limit speech if it creates a clear and present danger.
- **Engel v. Vitale (1962)**
  School-sponsored prayer in public schools is unconstitutional.

Student Rights

- **Tinker v. Des Moines (1969)**
  Students keep free speech rights in school as long as they do not substantially disrupt learning.
- **Hazelwood v. Kuhlmeier (1988)**
  Schools can censor school-sponsored student speech for valid educational reasons.

Privacy and Individual Liberties

- **Roe v. Wade (1973)**
  Recognized a constitutional right to privacy in abortion decisions.
  Note: later overturned by **Dobbs v. Jackson Women's Health Organization (2022)**.
- **District of Columbia v. Heller (2008)**
  Protected an individual right to have a firearm for lawful purposes like self-defense.
- **Texas v. Johnson (1989)**
  Flag burning is protected symbolic speech.

Foundations of Government and Power

- **Popular sovereignty** = power comes from the people
- **Republic** = people elect representatives
- **Rule of law** = everyone must follow the law
- **Checks and balances** = each branch can limit the others
- **Separation of powers** = power is divided among 3 branches

Ancient Government

- **Ancient Greece (Athens)** = direct democracy (citizens vote directly)
- **Roman Republic** = republic (citizens elect representatives)

Types of Government

- **Republic** = based on popular sovereignty
- **Monarchy** = king or queen rules, often by inheritance
- **Divine right** = idea that a ruler gets power from God
- **Dictatorship** = one ruler holds power, people have few freedoms

Constitution

- Main purpose = sets up the structure and powers of government
- Explains:
  - branches of government
  - powers of government
  - limits on government

Preamble

- **"We the People"** means:
  - government gets its power from the people
  - government is accountable to the people

Purposes of Government

- From the Preamble:
    - **Establish justice** = courts and fair laws
    - **Ensure domestic tranquility** = keep peace at home
    - **Provide for the common defense** = protect the country
    - **Promote the general welfare** = support the public good
    - **Secure the blessings of liberty** = protect freedom

Articles of the Constitution

- **Article I** = Legislative Branch (Congress)
- **Article II** = Executive Branch (President)
- **Article III** = Judicial Branch (Courts)

Branches of Government

- **Legislative Branch**
    - Makes laws
    - Congress = House of Representatives + Senate
    - Declares war
    - Taxes
    - Coins money

Executive Branch

- President enforces laws
- Can **veto** bills passed by Congress
- Commander in Chief of the military

Judicial Branch

- Interprets laws
- Supreme Court is the highest court

Veto

- **Veto** = president rejects a bill
- Congress can override a veto with a **2/3 vote** in both houses

Federal vs. State Power

- **Supremacy Clause** = federal law is above state law
- If state law conflicts with federal law, **federal law wins**

Impeachment

- **House of Representatives** = brings charges (impeaches)
- **Senate** = holds the trial and can remove the official

Rights and Legal Protections

- **Habeas corpus** = government must give a reason for holding someone in jail
- Protects against unfair detention

Legal System

- **Civil law** = disputes between people or groups
    - examples: contracts, property, slander
- **Criminal law** = crimes against society

Enlightenment Ideas

- **John Locke**
    - natural rights
    - social contract
    - These ideas influenced the **Declaration of Independence** and the **Constitution**

Declaration of Independence

- **Main author = Thomas Jefferson**
    - Inspired by John Locke
    - Says:
    - people have natural rights
    - government must protect those rights
    - people can change or overthrow a government that fails

Key Historical Documents and Ideas

- **Mayflower Compact** = early self-government
- **Great Compromise**
    - House = representation by population
    - Senate = equal representation
- **Monroe Doctrine** = warned Europe to stay out of the Western Hemisphere
- **Northwest Ordinance** = influenced expansion and banned slavery in that territory

Amendments and the Bill of Rights

- The first 10 amendments are called the **Bill of Rights**.
- **1st Amendment** = freedom of religion, speech, press, assembly, petition
- **2nd Amendment** = right to bear arms
- **3rd Amendment** = no quartering of soldiers in homes
- **4th Amendment** = no unreasonable searches and seizures; warrants needed
- **5th Amendment** = due process, double jeopardy, self-incrimination
- **6th Amendment** = speedy public trial, lawyer, jury, witnesses
- **7th Amendment** = jury trial in many civil cases
- **8th Amendment** = no cruel and unusual punishment; no excessive bail
- **9th Amendment** = people have rights not specifically listed
- **10th Amendment** = powers not given to the federal government go to the states or people

Other Important Amendments

- **13th Amendment** = ended slavery
- **14th Amendment** = citizenship, due process, equal protection
- **15th Amendment** = voting rights cannot be denied because of race
- **16th Amendment** = federal income tax
- **17th Amendment** = direct election of senators
- **18th Amendment** = prohibition of alcohol
- **19th Amendment** = women's suffrage
- **21st Amendment** = repealed prohibition
- **22nd Amendment** = president limited to 2 terms
- **24th Amendment** = banned poll taxes in federal elections
- **25th Amendment** = presidential succession and disability
- **26th Amendment** = voting age lowered to 18

Major Events

- **Watergate**
  - led to Richard Nixon's resignation
  - showed that even the president is not above the law

Federal Laws and Regulation

- **Interstate Commerce Act** = federal regulation of transportation and trade
- **OSHA** = workplace safety rules

Quick Match Section

- **people power** → popular sovereignty
- **elect representatives** → republic
- **government by the people directly** → direct democracy
- **Athens** → direct democracy
- **Rome** → republic
- **limit government power** → checks and balances
- **3 branches** → separation of powers
- **structure of government** → Constitution
- **held in jail unfairly** → habeas corpus
- **president rejects bill** → veto
- **federal law beats state law** → Supremacy Clause
- **war / military protection** → common defense
- **prayer in public school** → Engel v. Vitale
- **segregation constitutional** → Plessy v. Ferguson
- **segregation unconstitutional in schools** → Brown v. Board
- **lawyer for poor defendant** → Gideon v. Wainwright
- **police must read rights** → Miranda v. Arizona
- **illegal search evidence thrown out** → Mapp v. Ohio
- **court can strike down laws** → Marbury v. Madison
- **Declaration of Independence** → Thomas Jefferson
- **main author of Constitution** → James Madison
- **income tax** → 16th Amendment
- **equal protection / due process** → 14th Amendment
- **speech, religion, press, assembly** → 1st Amendment
- **search and seizure** → 4th Amendment
- **due process / self-incrimination** → 5th Amendment
- **lawyer / speedy trial** → 6th Amendment
- **cruel and unusual punishment** → 8th Amendment